FIRST AMENDMENT TO THE INTERLOCAL AGREEMENT BETWEEN THE TOWN OF DAVIE AND THE TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY FOR THE EXTENSION OF CREDIT TO THE DAVIE COMMUNITY REDEVELOPMENT AGENCY

THIS FIRST AMENDMENT TO THE INTERLOCAL AGREEMENT made and entered this 5th day of February 2025, between the Town of Davie Community Redevelopment Agency("Davie CRA"), a public body corporate and politic created pursuant to Chapter 163 Part III, F.S., having its principal office at 8800 SW 36 Street, Davie, Florida 33328 and the Town of Davie ("Town"), a Florida Municipal Corporation having its principal office at 8800 SW 36 Street, Davie, Florida 33328.

WHEREAS, the Town is a municipal corporation organized and existing under the constitution and laws of the State of Florida;

WHEREAS, Chapter 163 Part III of the Florida Statutes (sometimes referred to herein as the "Act") provides for the creation of community redevelopment agencies as separate but dependent governments of the municipalities that create community redevelopment agencies;

WHEREAS, by the enactment of an Ordinance No. 88-23 effective May 4, 1988, the Town created a community redevelopment agency and established the powers of the agency;

WHEREAS, the Redevelopment Trust Fund was established by Town Council Ordinance No. 88-75 and effective December 12, 1988;

WHEREAS, the Davie CRA has requested Town extend credit to Davie CRA for the purpose of carrying out community redevelopment activities and Town is willing to extend such credit only upon the terms and conditions of this Agreement;

WHEREAS, the Davie CRA and Town approved the Interlocal Agreement between the Town of Davie and Town of Davie Community Redevelopment Agency for the extension of credit to the Davie Community Redevelopment Agency on February 5, 2025; and

WHEREAS, the Davie CRA and Town desire to modify Section 1.5 Payment Schedule to update the repayment schedule to extend through February 5, 2029.

NOW, THEREFORE, in consideration of the mutual promises and conditions contained in this First Amendment and other good and valuable considerations, the receipt of which is acknowledged, the Town and the Davie CRA agree as follows:

1. Section 1.5 Payment Schedule is amended to read as follows:

Section 1.5 Payment Schedule. The Davie CRA shall remit payment in the amount of One Million Dollars once a year for the term of this Loan, starting on February 1, 2026. Subsequent yearly payments shall be due no later than February 1 of that year.

2. Miscellaneous:

a. In the event of a conflict between this Amendment and the Interlocal Agreement with the subject matter hereof, the terms and provisions of this Amendment shall be superseding and controlling.

b. Except as may otherwise be provided for herein, all capitalized terms used herein shall have the meaning ascribed to them in the Interlocal Agreement.

c. This Amendment is made for the sole benefit and protection of Town and the Davie CRA, and no other person shall have any right of action hereunder.

d. This Amendment may be executed in any number of counterparts and by electronic transmission, each of which, when executed and delivered, shall be deemed an original, but all counterparts shall together constitute one and the same instrument.

e. Except to the extent amended and modified by this Amendment, the terms and provisions of the Interlocal Agreement shall remain unmodified and in full force and effect.

[SIGNATURES TO FOLLOW]

IN WITNESS WHEREOF, the Parties have caused this First Amendment to be executed as of the day and year first written above.

TOWN OF DAVIE

_____
By: Judy Paul, Mayor

Attest:

_____
Town Clerk

STATE OF FLORIDA
COUNTY OF BROWARD

The foregoing instrument was acknowledged before me this _____ day of _____, 2025, by Judy Paul, as the Mayor of the Town of Davie, who is personally known to me or who produced _____, (type of identification) as identification.

NOTARY'S SEAL:

_____
Notary Public of the State of Florida

_____
Name of Acknowledger Typed, Printed or Stamped)

_____
Commission Number

CRA

TOWN OF DAVIE COMMUNITY REDEVELOPMENT AGENCY

By:_____
Judy Paul, CRA Chair

Attest:

By: _____
Board Secretary

STATE OF FLORIDA

COUNTY OF BROWARD

The foregoing instrument was acknowledged before me this _____ day of _____, 2025, by Judy Paul, as the Chair of the Town of Davie Community Redevelopment Agency, who is personally known to me or who produced _____, (type of identification) as identification.

NOTARY'S SEAL:

_____
Notary Public of the State of Florida

_____
(Name of Acknowledger Typed, Printed or Stamped)

_____
Commission Number